

Credit - Drishti Ias

SC Sets Aside Death Sentence and Upholds Fair Trial



Source: TH

Why in News?

The Supreme Court (SC), in *Abdul Hameed v. State of Rajasthan*, set aside the **death sentence of Dr. Abdul Hameed** in the **1996 Samleti Bus Bomb Blast case in Dausa, Rajasthan**, holding that the trial was **fundamentally vitiated** due to the **denial of effective legal representation**, which violated his **constitutional right to a fair trial**. The Court ordered a **fresh (de novo) trial** to be completed within one year.

What were the Observations of the SC Regarding the Right to a Fair Trial?

- **Fair Trial is Non-Negotiable:** The SC ruled that the constitutional guarantee of a fair trial is "absolutely non-negotiable and cannot be sacrificed at the altar of practical convenience."
 - The administration of criminal justice relies not just on securing convictions, but on **ensuring the procedure is fair, just, and reasonable**.
 - The Supreme Court reiterated that the **confession of a co-accused is not substantive evidence** and can only be used to "lend assurance to a conclusion otherwise reached" on the basis of independent and legally admissible evidence.
- **Due Process over Retribution:** The Court remarked, "*The true measure of justice does not lie in the swiftness of retribution, but in the discipline of restraint.*"
 - It reiterated the canonical maxim of criminal jurisprudence that **it is better for a hundred guilty persons to escape than for one innocent person to be condemned**.
- **Fresh Trial Ordered:** The Court **ordered a fresh trial instead of acquittal**, directing its completion within **one year** and ensuring the accused is provided **effective legal representation**.
- **Sanctity of Due Process:** The judgment reaffirms that procedural safeguards are non-negotiable in the Indian criminal justice system. Even in heinous crimes like terrorism, the state cannot bypass constitutional guarantees.
 - It serves as a **stern reminder to trial court judges** to proactively ensure that the accused has **competent legal representation** before proceeding with the examination of witnesses or sentencing.

What are the Provisions Regarding Legal Aid and Fair Trial in India?

• Constitutional Provisions:

- **Article 21 (Protection of Life and Personal Liberty):** The Supreme Court has expansively interpreted **Article 21** to include the "Right to a Fair Trial" and "Right to Free Legal Aid" for indigent accused persons as essential components of a just, fair, and reasonable procedure.
- **Article 22(1):** It guarantees that no person who is arrested shall be denied the **right to consult, and to be defended by, a legal practitioner of his choice.**
- **Article 39A (Directive Principles of State Policy):** Inserted by the **42 nd Constitutional Amendment Act, 1976**, it complements **Article 14 (Equality before Law)** by directing the State to provide free legal aid through suitable legislation or schemes, ensuring that access to justice is not denied due to economic or other disabilities.

• Statutory Provisions:

- **Bharatiya Nagarik Suraksha Sanhita (BNSS), 2023:** Under Section 341 of the **BNSS** (formerly Section 304 of the CrPC), if an accused lacks the financial means to hire legal representation, the Court is obligated to assign an advocate to defend them.
 - This legal counsel is **provided entirely at the expense of the State to ensure a fair trial.**
- **The Legal Services Authorities Act, 1987:**
 - Established a nationwide legal aid framework comprising the **National Legal Services Authority (NALSA)** (*headed by the Chief Justice of India*) , **State Legal Services Authorities (SLSAs)** , and **District Legal Services Authorities (DLSAs)** to provide **free and competent legal services** to weaker sections.
 - **Eligibility:** **SCs/STs** , **women and children** , victims of **trafficking or begar** , persons with **disabilities or mental illness** , victims of **disasters or caste/ethnic violence** , **industrial workmen** , **persons in custody** , and individuals with an **annual income below the prescribed limit** (*generally Rs 1-3 lakh for lower courts and Rs 5 lakh for Supreme Court cases*) .
 - **Impact:** **Over 44.22 lakh people** received **free legal aid and legal advice** through these authorities between **2022-23 and 2024-25** .
 - **Lok Adalats:** The **Legal Services Authorities Act, 1987** provides **statutory recognition** to **Lok Adalats** and **Permanent Lok Adalats** for the **speedy and amicable settlement** of disputes at both **pre-litigation and pending stages** .
 - Between **2022-23 and 2024-25** , they settled **over 23.5 crore cases** , helping reduce judicial pendency and litigation costs.

• Landmark Judgments:

- **Hussainara Khatoon v. Home Secretary, State of Bihar (1979):** The Supreme Court held that the right to free legal service is an essential ingredient of 'reasonable, fair, and just' procedure for a person accused of an offense and is implicit in the guarantee of Article 21.
- **Khatri v. State of Bihar (1981):** The Court ruled that the State is constitutionally bound to provide legal aid not only at the stage of trial but also when the accused is first produced before the magistrate or remanded.

Key Initiatives and Institutions Supporting

Accessible Legal Aid

- Key Initiatives
- **Legal Aid Defense Counsel System (LADCS):** A **NALSA** initiative providing **free legal defence in criminal cases** to eligible beneficiaries under the **Legal Services Authorities Act, 1987** .
- **Designing Innovative Solutions for Holistic Access to Justice (DISHA):** A **Department of Justice** scheme (2021–26) promoting access to justice through **Tele-Law, Nyaya Bandhu (Pro Bono Legal Services), legal literacy, and awareness programmes** with over **2.10 crore beneficiaries** (February 2025) .

Institutions Supporting Accessible Justice

- **Fast-Track Courts (FTCs):** Speedy trial of **heinous offences** and sensitive cases involving **women, children, senior citizens, persons with disabilities** , and long-pending civil disputes. **865 FTCs** functional (June 2025) .
- **Fast-Track Special Courts (FTSCs):** Established in **2019** to try **rape and POCSO cases** .
 - **725 FTSCs** , including **392 exclusive POCSO courts** , are functional (June 2025) .
- **Gram Nyayalayas:** Grassroots courts established under the **Gram Nyayalayas Act, 2008** to provide **speedy and affordable justice in rural areas** . **488** functional (March 2025) .
- **Nari Adalats:** Function under **Mission Shakti (Sambal)** to resolve **domestic and gender-based disputes** through mediation at the **Gram Panchayat** level.
- **Exclusive Special Courts (SC/ST Act):** Established under the **SC/ST (Prevention of Atrocities) Act, 1989** for the **speedy trial of offences against SCs and STs** .

Death Penalty (Capital Punishment)

- **Definition: Death Penalty** is the **execution of a person sentenced to death by a court of law** after due process. It is distinct from **extrajudicial executions** , which occur without legal procedure.
- **Philosophical Basis:** Based on the principle of **retributive justice** , which holds that serious crimes deserve proportionate punishment.
- **History in India:** **Manusmriti** prescribed capital punishment for certain offences, while the **Indian Penal Code (1860)** formally incorporated the death penalty, which continues under Indian law.
- **Legal Position:** The **Bharatiya Nyaya Sanhita (BNS), 2023** retains the death penalty and extends it to offences such as **mob lynching resulting in death** and **rape of a minor** .
 - **Around 14 offences** , including **murder, terrorism, and abetment of mutiny** , are punishable with death.
- **Exemptions:** **Juveniles, pregnant women, and persons with mental illness** cannot be executed.
- **Appellate Process:** A **Sessions Court's death sentence** must be **confirmed by the High Court** , with a further appeal available before the **Supreme Court** .
- **Legal Remedies:** Death row convicts may file a **Mercy Petition** before the **President (Article 72)** or the **Governor (Article 161)** .
 - They may also file a **Curative Petition** , recognised in **Rupa Ashok Hurra v. Ashok Hurra**

(2002) , to remedy a **gross miscarriage of justice** .

Conclusion

The Supreme Court reinforces that **a fair trial and effective legal representation are indispensable pillars of the rule of law** . By prioritizing **due process over expediency** , the verdict strengthens constitutional guarantees under **Articles 21, 22, and 39A** , reaffirming that **justice must not only be done but must also be seen to be done** , even in the gravest criminal cases.

"A fair trial is the cornerstone of the rule of law." Discuss how far has it succeeded in ensuring access to justice?

Frequently Asked Questions (FAQs)

1. What is the constitutional basis of the Right to a Fair Trial in India?

The **Right to a Fair Trial** is derived from **Article 21** , reinforced by **Article 22(1)** (right to legal counsel) and **Article 39A** (free legal aid), ensuring just, fair, and reasonable legal procedures.

2. What is the objective of the Legal Services Authorities Act, 1987?

The Act established **NALSA, SLSAs, and DLSAs** to provide **free and competent legal services** to weaker sections and gave **statutory recognition to Lok Adalats** for speedy dispute resolution.

3. Who is eligible for free legal aid under the Legal Services Authorities Act, 1987?

SCs/STs, women, children, persons with disabilities, victims of trafficking or disasters, industrial workmen, persons in custody , and those below the prescribed **income limit** are eligible.

4. What is the significance of Section 341 of the Bharatiya Nagarik Suraksha Sanhita (BNSS), 2023?

Section 341 BNSS (earlier **Section 304 CrPC**) mandates that courts provide **State-funded legal representation** to accused persons who cannot afford a lawyer, ensuring a fair trial.

5. What role do Lok Adalats play in the justice delivery system?

Lok Adalats provide **speedy, inexpensive, and amicable settlement** of disputes at **pre-litigation and pending stages** , reducing judicial pendency and litigation costs.

UPSC Civil Services Examination, Previous Year Questions (PYQs)

Prelims

Q. With reference to National Legal Services Authority, consider the following statements: (2013)

1. Its objective is to provide free and competent legal services to the weaker sections of the society on the basis of equal opportunity.
2. It issues guidelines for the State Legal Services Authorities to implement the legal programmes and schemes throughout the country.

Which of the statements given above is/are correct?

- (a) 1 only
- (b) 2 only
- (c) Both 1 and 2
- (d) Neither 1 nor 2

Ans: (c)

Mains

Q. Who are entitled to receive free legal aid? Assess the role of the National Legal Services Authority (NALSA) in rendering free legal aid in India (2023)

White-bellied Heron



Source: TH

The proposed **1,200 MW hydropower project** on the **Lohit River** in Arunachal Pradesh has raised concerns over the survival of the **White-bellied Heron** , one of the world's rarest and most threatened birds.

White-bellied Heron

- **About:** The White-bellied Heron (*Ardea insignis*), also known as the **imperial heron** or **great white-bellied heron** , is a **large species** of heron in the **family Ardeidae** . It is recognized as the **2 nd -largest heron in the world** and is among the world's most elusive birds.

- **Habitat:** Strictly dependent on **free-flowing, fast-flowing eastern Himalayan** riverine habitats with **low human disturbance** , especially rivers lined with **mature riparian forests**.
 - Feeds mainly on **fish found in shallow river rapids** , making it highly sensitive to dams, altered river flows, and changes in water turbidity. It inhabits Himalayan river systems up to elevations of about 1,500 m above sea level.
- **Morphological Features:** **Longer, flexible neck** with **razor-sharp serrated bill** for catching fish in deep waters.
 - **Compact body with shorter legs** for stability in fast currents. **Extended toes** to grip slippery rocks—an adaptation to turbulent river habitats.
 - Its huge body size (up to around four feet tall) enables a **unique foraging strategy**: it waits motionless for fish to come close and then strikes rapidly.
- **Conservation Status:**
 - **Critically Endangered** species as per the **IUCN Red List** .
 - **Schedule-I species** (highest legal protection in India) under the **Wildlife Protection Act, 1972** .
- **Global & Regional Population:** Distributed across ~**165,000 km²** of **Himalayan freshwater ecosystems** spanning **Bhutan, India, Myanmar, China, and Bangladesh** . **Fewer than 60 individuals** survive in the wild today.
 - **Bhutan** hosts ~**45% of the global population** , with **3-5 active breeding pairs** , making it the species' last stronghold.
 - It is considered **extinct in Nepal** and **possibly Bangladesh** .
- **Distribution in India:** Found mainly in **Arunachal Pradesh** (Lohit, Anjaw, and Changlang districts) . Recorded in and around **Namdapha Tiger Reserve** and **Kamlang Tiger Reserve** .
 - India has only **6-9 individuals** distributed across three rivers: Noa-Dehing River, Lahm River, and Lohit River. The **Lahm River (a tributary of the Lohit River) basin harbours around 70% of India's white-bellied heron population** . Walong Cantonment, located near the proposed hydropower project site on the Lohit River, is a known breeding site for the species.
- **Behavior:** Largely **solitary** , vocalizing with **deep croaks** mainly at **dawn and dusk** , and nests in **tall** mature riparian trees. The riparian mature forest plays a critical role in both roosting and nesting.
- **Ecological Significance:** It serves as a **bio-indicator** for the **Himalayan freshwater ecosystem** , reflecting factors like **water quality** , **fish populations** , **pollution** , and **habitat integrity** . Its decline signals broader ecosystem degradation and collapsing **food chains** .
- **Major Threats:** **Hydropower dams** (habitat fragmentation, altered river flows), **habitat loss** , **hunting** , and **anthropogenic disturbances** . Very **small gene pool** and restricted distribution range.
- **Conservation Measures:** India should develop conservation breeding centres for the species and learn from **Bhutan's programme**, which is the world's first captive facility designed to hatch and rear critically endangered birds.



Read More: [White-bellied Heron and Kalai-II Project](#)

New Exoplanet Discovered Around Beta Pictoris



Source: TH

Astronomers using NASA's **James Webb Space Telescope (JWST)** discovered a hidden giant exoplanet, **Beta Pictoris d**, in the well-studied Beta Pictoris star system, located **63 light-years from Earth** in the **Milky Way**.

- **About Beta Pictoris System:** Beta Pictoris is a young planetary system, around **23 million years old**, providing insights into planetary formation and interactions between planets and the surrounding dust and debris disk.
 - Before this discovery, the system was known to host two giant planets: **Beta Pictoris b** (one of the first directly imaged exoplanets) and **Beta Pictoris c**.
 - With Beta Pictoris d, it became the **second known planetary system with at least three directly imaged planets**.
- **About Beta Pictoris d:** It is a **gas giant exoplanet**, estimated to have at least **twice the mass of Jupiter**, making it the smallest of the three known giant planets in the system.
 - It orbits its star at around **30 astronomical units (AU)**, comparable to Neptune's distance from the Sun, and has the widest orbit among the three planets.
 - It remained hidden for years as it lies within one of the brightest known debris disks, making conventional imaging difficult.
- **Discovery Method:** Discovered accidentally using JWST's **Near-Infrared Spectrograph (NIRSpec)** **Integral Field Unit** while studying Beta Pictoris b; spectroscopy revealed its chemical signature and

motion.

- **Carbon monoxide absorption lines** and radial velocity analysis confirmed it as a planet, while follow-up observations using the **Mid-Infrared Instrument (MIRI)** detected water vapour and methane, confirming its atmosphere.
- **Significance:** It is the **first directly imaged exoplanet discovered primarily through moderate-resolution spectroscopy** , demonstrating a new method of detecting hidden planets through atmospheric chemical fingerprints.



Read More: [New Dwarf Planet and Planet Nine](#)

Pellet Guns and Shock Batons



Source: TH

Pellet guns are back in the spotlight following allegations of their use during the July 2026 Delhi youth and student protest organised by the Cockroach Janta Party (CJP).

- **Classification and Lethality:** Categorized globally as "**non-lethal**" **crowd-control methods** (alongside tear gas and water cannons), pellet guns fire cartridges containing hundreds of **lead pellets** .
 - While designed to immobilize, they can cause fatal injuries or permanent blindness if **fired at close range into soft tissues or eyes**.
- **Manufacturing and Protocols:** The ammunition is manufactured at the **Ordnance Factory, Ishapore** . Standard Operating Procedures (SOPs) mandate that security personnel open **minimal fire and aim strictly "below the waist"**.
- **Evolution in Conflict Zones:** First deployed by the Government during the **2010 Kashmir summer unrest** , pellet guns drew international scrutiny following the **2016 Kashmir unrest** , where **CRPF deployment** resulted in mass blinding injuries.
 - This led to the 2017 introduction of alternative "**plastic bullets**," tested at the **Terminal Ballistics Research Laboratory (TBRL) in Chandigarh** .
- **Shock Batons:** A shock baton is a **handheld electroshock device** used by security forces as a **non-lethal self-defence and crowd-control weapon** . It incapacitates a person by delivering a **high-voltage, low-current electric shock** , causing temporary pain and muscle disruption without intended long-term injury.
 - In India, **Rapid Action Force (RAF)** personnel carry shock batons as part of their standard crowd-control equipment.
 - In **2021** , the **Ministry of Home Affairs (MHA)** , through the **Border Security Force (BSF)** , prescribed **Qualitative Requirements (QRs)** for handheld shock batons, including a **maximum weight of 1 kg** , **length of 450-700 mm** , **operating temperature of -20°C to +50°C** , **minimum service life of five years** , and a **rechargeable battery capable of delivering at least 1,000 quarter-second shock bursts** on a full charge.
 - They are also designed with **high-impact-resistant and water-resistant materials** for field operations.

Read more: [Directed Energy Weapons and Hypersonic Weapons](#)

Borophene-Based Green Lubricant



Source:PIB

Researchers from the **Institute of Advanced Study in Science and Technology (IASST), Guwahati** , an autonomous institute under the **Department of Science and Technology (DST)** , have demonstrated the **first-ever use of borophene** as a high-performance lubricant additive in **castor oil** , paving the way for **energy-efficient and sustainable green lubrication technologies** .

- **Need for the Research: Friction and wear** are among the major causes of **energy loss and equipment failure** in industrial machinery.
 - Although **castor oil** is a **renewable and biodegradable lubricant** , its performance is limited and can be significantly enhanced using suitable additives.
- **Borophene:** It is a **two-dimensional (2D) nanomaterial** made entirely of boron atoms. It possesses **high mechanical strength, excellent electrical conductivity** , making it promising for advanced applications such as **batteries, supercapacitors, fuel cells, and now green lubrication**.
 - The researchers found that adding just 0.1 wt.% borophene to castor oil reduced friction by about 42% compared to pure castor oil. The material disperses uniformly without chemical modification and forms a protective **tribofilm containing** iron oxides, carbonaceous species, and boron-based compounds, which reduces **shear stress, enhances load-bearing capacity, and minimizes wear**.
- **Significance:** The borophene-castor oil combination improves machine efficiency, extends machinery life, reduces energy consumption, and promotes environmentally friendly lubrication technologies.
 - It has potential applications in renewable energy systems, marine applications, sustainable manufacturing, and green lubrication technologies.

Read more: [Role of Nanomaterials in Solving Environmental Issues](#)